

BEFORE THE FEDERAL MARITIME COMMISSION

MCS INDUSTRIES, INC.,
Complainant

v.

COSCO SHIPPING LINES CO., LTD. AND
MSC MEDITERRANEAN SHIPPING COMPANY S.A.,
Respondents.

DOCKET NO. 21-05

**RESPONDENT MSC MEDITERRANEAN SHIPPING COMPANY S.A.'S
REVISED MOTION FOR CONFIDENTIAL TREATMENT**

Respondent MSC Mediterranean Shipping Company S.A. (“MSC”) respectfully submits this revised motion that seeks confidential treatment, pursuant to Rule 5(b) of the Federal Maritime Commission’s Rules of Practice and Procedure, 46 C.F.R. § 502.5(b), of the non-public version of a very limited portion of MSC’s Motion to Dismiss filed originally on December 23, 2021, and of portions of the Attachment and Exhibits thereto.

As noted when the Motion was originally filed, a good many of the redactions to the exhibits and the deposition excerpts, and the corresponding discussion in the Motion, were redacted provisionally as confidential as Complainant had not had a chance to review a recent deposition for confidentiality purposes. That review has been completed and the parties have agreed that only the following redactions are now necessary:

1. The attachment with cited Pages from Master Deposition, pages and lines 106:21-25 and 107: 7-10.
2. Page 11 lines 4-7 of the Motion to Dismiss which references these pages and lines from the Master Deposition.
3. Exhibit 2, except for a portion Complainant has agreed is nonconfidential.

Good cause exists for the confidential treatment of the above information, as Complainant has designated it as confidential under Confidentiality Stipulation and Protective Order entered by Your Honor on November 18, 2021, as information it asserts is sensitive commercial data, the disclosure of which would cause competitive and financial harm if it became public.

Pursuant to Rule 502.5(b), MSC is providing as attachments hereto the revised public version of MSC's Motion to Dismiss and the Attachment and Exhibits to, redacted as noted above. The non-public version of the Motion and Attachment and Exhibits was filed on December 23, 2021 and need not be refiled. This revised public version can be placed on the docket.

WHEREFORE, MSC respectfully requests that the revised public version with the above designated confidential portions redacted be placed on the docket as the public version of its filing.

Respectfully submitted,

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MSC Mediterranean Shipping Company S.A.*

DATED: February 3, 2021

CERTIFICATE OF SERVICE

I certify that, on February 3, 2021, a true and current copy of the foregoing was filed via electronic mail with the Secretary of the Federal Maritime Commission, and a copy was served via electronic mail on the following:

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